IN THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH – II

CA (CAA) 47/ND/2020

Under Sections 230 to 232 of the Companies Act, 2013

In the matter of Scheme of Amalgamation

Between

M/s. Rapipay Fintech Holding Private Limited
....Applicant No.1/Transferor Company)

And

M/s. Rapipay Fintech Private Limited
....Applicant No. 2/Transferee Company)

Order Delivered on 24.06.2020

CORAM

CH. MOHD SHARIEF TARIQ, MEMBER (JUDICIAL)

MR. L. N. GUPTA, MEMBER (TECHNICAL)

PRESENT

For Applicant(s) : Mr. Anuj Mirdha, Mr. Karan Malhotra, Advocates

ORDER

Per Mr. L. N. Gupta (Member Technical)

1. Under consideration is the Company Application No. CA(CAA) 47/ND/2020, filed under Sections 230 to 232 of the Companies Act, 2013. The prayer made is to dispense with of holding and convening of the meeting of Shareholders and in relation to the Transferor and Transferee Company.

2. **M/S Rapipay Fintech Holding Private Limited**

i. The Transferor Company viz., M/s. Rapipay Fintech Holding Private Limited was incorporated on 05.02.2019 with CIN No. U65990DL2019PTC345495. The Authorised Share Capital of the Transferor Company is Rs.15,00,00,000 and Paid-up Share Capital is Rs.9,36,51,000.

ii. The present joint application is filed by the Applicant Companies, seeking direction from this Tribunal under section 231-232 of the Companies Act, 2013 for sanctioning the Scheme of Amalgamation between the Transferor and Transferee Companies. The Transferee Company i.e., M/S Rapipay Fintech Private Limited was originally incorporated with the name of "Virgosoft IT Services Private Limited" on 06.04.2009 and subsequently changed its name to "Rapipay Fintech Private Limited" vide the certificate of incorporation dated 7.11.2017 issued by the Ministry of Corporate Affairs placed on record.

iii. The Board of Directors of both the Companies i.e. Transferor Company and Transferee Company have approved the Scheme vide their respective Board meetings dated 27.01.2020 for the purpose of seeking dispensation of meeting of the shareholders. The rationale sought to be achieved by the applicant companies are stated to be the consolidation of similar businesses under a single entity, achieving better operational efficiency, rationalising costs, pooling of resources and their optimum utilization, etc.

iv. The consent affidavits given by the 7 Shareholders of the Transferor Company are placed at page 174-203 of the Application and the list of 7 Shareholder is placed at page 173 of the Application, wherein it has been deposed that they do support the Scheme of Amalgamation and consent to dispense with convening, holding and conducting the meeting of Shareholders. Therefore, the meeting of the Shareholders of the Transferor Company is allowed to be dispensed with.

v. It is submitted by the Applicants that there are no Secured Creditors in relation to the Transferor Company. The Certificate issued by the Chartered Accountants to this effect is placed at page 204 of the Application.

vi. There is only One Unsecured Creditor in relation to the Transferor Company. The certificate issued by the Chartered Accountants to this effect is placed at page 206 of the Application. The consent affidavit given by the sole unsecured creditor is also placed on record at page 208-210 of the Application, wherein it has been deposed that he supports the Scheme of Amalgamation and gives consent to dispense with convening, holding and conducting the meeting of the Unsecured Creditor. Therefore, the meeting of the Unsecured Creditor of the Transferor Company is allowed to be dispensed with under clause (9) of the Section 230 of the Companies Act, 2013.

3. **M/s. Rapipay Fintech Private Limited**

i. The Transferee Company viz., M/s. Rapipay Fintech Private Limited, has total 8 (eight) Shareholders. The list of the Shareholders is placed at page 211 of the Application. The consent affidavits given by the Shareholders are placed at pages 212 to 248 of the typed set filed with the Application, wherein it has been deposed that they do support the Scheme and consent to dispense with convening, holding and conducting the meeting of Shareholders. Therefore, the meeting of the Shareholders of the Transferee Company is allowed to be dispensed with.

ii. It is submitted by the Applicants that there are no Secured Creditors in relation to the Transferee Company. The Certificate issued by the Chartered Accountants to this effect is placed at page 249 of the typed set filed with the Application.

iii. There are thirty seven (37) Unsecured Creditors in relation to the Transferee Company. The certificate issued by the Chartered Accountants to this effect is placed at page 251 to 252 of the Application.

iv. The consent affidavit given by the 8 (eight) Unsecured Creditors out of 37, which constitutes 90.5 % consent of the unsecured creditors as per the Amalgamation Rule, 2016 has been placed at page 255 to 284 of the Application, wherein it has been deposed by such unsecured Creditors that they support the Scheme and consent to dispense with convening, holding and conducting the meeting of Unsecured Creditors. Therefore, the meeting of the Unsecured Creditors of the Transferee Company is allowed to be dispensed with under clause (9) of the Section 230 of the Companies Act, 2013.

4. The Registry is directed to issue notice to the concerned Regional Director, Ministry of Corporate Affairs, ROC and Income Tax Authorities including the Assessing Officer of the I.T. Circle and Official Liquidator in relation to the Transferor Company. Since the Applicant Companies are Private Limited, there is no requirement to issue notice to SEBI or other stock exchanges and CCI or other sectoral regulators. In case, the statutory authorities to whom

the notice is issued are desirous of making any objection/representation, they may do so within 30 days from the date of receipt of the notice. In case no objection/representation is made, it shall be presumed that they/any of them have/has no objection/representation to make.

5. The Applicant Companies are directed to issue private notice to the said authorities/regulators by way of speed post/hand delivery, having not less than 30 + 2 days before the date fixed for filing the Company Petition(s). The proof of sending and effecting the service of notice upon them along with the newspaper publication shall be submitted with supporting affidavit to this Bench along with the Company Petition.

6. The Applicant Companies are directed to effect publication separately in the newspapers at least 30 days before filing the Company Petition(s). The Applicant Companies are further directed to upload the notice on their websites and display the notice on the notice board at its Registered Office. The Registry is also directed to display the notice, on the notice board of this Bench.

7. Accordingly, the Application is allowed. The Applicant Companies are directed to present the Petition on or before 31.08.2020.

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(L. N. GUPTA)
MEMBER (T)

-Sd-

(CH. MOHD. SHARIEF TARIQ)
MEMBER (J)